

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Commissioner David Foster
Courtroom 9

627 W. 21st Street, Merced

Wednesday, September 02, 2026
10:00 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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14CV-00270	Discover Bank vs. Tirith Batther
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Order to Show Cause Re: Dismissal

On November 5, 2019, Plaintiff filed a Notice of Settlement indicating the parties agreed to a conditional settlement and that a request for dismissal would be filed no later than July 1, 2026. No request for dismissal has been filed. If no party appears to request more time to complete the settlement, the Court will dismiss the case pursuant to rule 3.1385(c)(2) of the California Rules of Court.

24CV-04718	Citibank N.A. vs. Tiffany Muniz
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Court Trial

Appearance required.

26CV-00382

LVNV Funding LLC vs. Rosemary Musquez

Motion for Order Deeming Admitted Requests for Admissions

The unopposed motion by plaintiff LVNV Funding LLC for an order deeming admitted the truth of any matters specified in plaintiff's Requests for Admission, Set One, served on defendant Rosemary Musquez is GRANTED. (Code Civ. Proc., § 2033.280, subd. (b).) It is undisputed that defendant has not served a response to Plaintiff's requests for admission prior to the hearing. In accordance with Code of Civil Procedure sections 2023.030(a) and 2033.280(c), the Court imposes a mandatory monetary sanction against Defendant in the amount of \$310.00 due and payable to Plaintiff LVNV Funding LLC thirty days from notice of entry of order.

The Court will sign the proposed order submitted with the moving papers. Plaintiff is directed to provide notice of the order to Defendant.

26CV-04193

[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.
